Federal Court of Australia

District Registry: New South Wales Registry

Division: General No: NSD1310/2026

COLES SUPERMARKETS AUSTRALIA PTY LIMITED
Applicant

AUSTRALIAN COMPETITION AND CONSUMER COMMISSION
Respondent

ORDER

JUDGE: Justice O'Bryan

DATE OF ORDER: 21 July 2026

WHERE MADE: Melbourne

THE COURT ORDERS THAT:

1. By 28 August 2026, the applicant file and serve a written submission addressing the question of what, if any, relief could be granted by the Court in this proceeding if the Australian Competition Tribunal affirms the determination of the Australian Competition and Consumer Commission dated 30 June 2026 in ACT 1 of 2026.

2. By 11 September 2026, the respondent file and serve:

   (a) any objection to competency under r 31.05 of the *Federal Court Rules 2011* (Cth); and

   (b) a written submission in response to the applicant's submission.

Date orders authenticated: 21 July 2026

Registrar

Note: Entry of orders is dealt with in Rule 39.32 of the *Federal Court Rules 2011*.